

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 14-16

BALTIC AUTO SHIPPING, INC.,

Complainant,

– vs. –

**MICHAEL HITRINOV
a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC.,**

Respondents.

COMPLAINANT’S MOTION FOR CONFIDENTIAL TREATMENT

Complainant, Baltic Auto Shipping, Inc. ("Baltic"), by and through its attorney, Marcus A. Nussbaum, Esq., hereby moves for an Order, pursuant to Rule 201 of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.201 for confidential treatment of Complainant's Status Report of this date and Appendix thereto.

**COMPLAINANTS HAVE DEMONSTRATED GOOD CAUSE FOR THE
CONFIDENTIAL TREATMENT OF THE STATUS REPORT AND APPENDIX**

The Commission may recall that on September 2, 2016, complainant filed a similar motion for confidential treatment which was granted pursuant to the Commission’s Memorandum Opinion and Order of January 5, 2017. The instant motion has been interposed for the very same reasons and is based upon the same documents that were at issue in the September 2, 2016 motion.

It is therefore respectfully submitted that complainant has demonstrated the requisite good cause necessary to justify confidential treatment of the Complainants’ Status Report and Appendix, in that the Settlement Agreement which is the subject of the Status Report has a confidentiality

clause that prohibits the disclosure of same to the public. Additionally, it is respectfully submitted that complainant's letter to the Court of October 4, 2017 referenced in the Status Report contains sensitive issues regarding events that occurred subsequent to Baltic's execution of the agreement.

In order to abide with the obligations of the parties herein arising out of said confidentiality clause, complainant has redacted from the public version of its Status Report and Appendix the citations to specific language in the Settlement Agreement. Additionally, complainant has omitted the sensitive issues described within the October 4, 2017 letter.

WHEREFORE, based upon the foregoing, it is respectfully requested that the Commission deem confidential the Status Report and Appendix, together with such other and further relief as may be just and proper under the circumstances.

Dated: October 12, 2017
Brooklyn, New York

Respectfully Submitted,

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", is written over a horizontal line.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Attorney for Complainant

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' MOTION FOR CONFIDENTIAL TREATMENT** upon Respondents' Counsel at the following address:

Jon Werner, Esq.
Lyons & Flood, LLP
One Exchange Plaza
55 Broadway, Suite 1501
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by first class mail, postage prepaid, and via email (gdoyle@doylelaw.net and jwerner@lyons-flood.com).



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Dated: Brooklyn, New York
October 12, 2017